

26STCV14890 26STCV14890

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EUGENE GREEN, as Administrator of the
Estate of Barbara L. Green,

Plaintiff,

v.

CARRINGTON MORTGAGE SERVICES, LLC, et
al.,

Defendants.

Case No.: 26STCV14890

Hearing Date: August 28, 2026

[TENTATIVE]

order RE:

defendants' demurrer to complaint

BACKGROUND

On May 11, 2026, Eugene Green, as
Administrator of the Estate of Barbara L. Green, filed this action against
Defendants Carrington Mortgage Services, LLC and Compu-Link Corporation. The
complaint asserts (1) wrongful foreclosure, (2) cancellation of trustee's deed
upon sale, (3) quiet title, (4) interference with prospective economic

advantage, and (5) violation of Business and Professions Code section 17200.

The action concerns real property

owned by Decedent Barbara L. Green. The property was encumbered by a reverse mortgage loan. Upon Decedent's death in September 2023, the loan became due and payable. Plaintiff Eugene Green was appointed administrator of Decedent's estate. Defendants were allegedly required to provide the Estate with notice and an opportunity to satisfy the loan. The Estate entered into a purchase agreement with a third-party buyer in August 2024, and the sale proceeds allegedly would have satisfied the outstanding loan obligation. However, Defendants initiated foreclosure in November 2024, interfering with the escrow process and causing the buyer to withdraw.

On July 27, 2026, Defendants filed

the instant demurrer to the complaint. Plaintiff filed an opposition on August 14, 2026. Defendants filed a reply on August 21, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether

the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los

Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court

(1984) 153 Cal.App.3d 902, 905.) "California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) 'in ordinary and concise language,' and the test for adequacy is not absolute but 'whether the pleading as a whole apprises the adversary of the factual basis of the claim.'" (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to

strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be

reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Lawrence Decl.)

DISCUSSION

“No person shall practice law in California unless the person is an active licensee of the State Bar.” (Bus. & Prof. Code, § 6125.) “[P]ersons may represent their own interests in legal proceedings, but may not represent the interests of another unless they are active members of the State Bar.” (Hansen v. Hansen (2003) 114 Cal.App.4th 618, 621.) Therefore, “[a] person who is unlicensed to practice law and who represents a decedent’s estate cannot appear in propria persona on behalf of the estate in matters outside the probate proceedings.” (Ibid.; see also Estate of Sanchez (2023) 95 Cal.App.5th 331, 340 [“this rule precludes the personal representative of an estate from appearing without counsel in actions outside of the probate case”].)

Plaintiff Eugene Green brought this action in his capacity as the administrator of Decedent’s estate. Therefore, Plaintiff cannot appear in propria persona in matters outside probate. Accordingly, “the papers and documents he drafted and purported to file should have been stricken,” including the complaint. (See Estate of Sanchez, supra, 95 Cal.App.5th at p. 340.)

In his opposition, Plaintiff “acknowledges the representation issue identified in Estate of Sanchez.” (Opp. 2:1-4.) Plaintiff argues, however, that this defect “does not establish that the Estate’s substantive claims are incurable or should be dismissed with prejudice.” (Ibid.) Plaintiff contends that “[t]he First Amended Complaint filed August 14, 2026, cures numerous pleading defects identified by Defendants.” (Opp. 2:5-6.)

However, no FAC has been filed, nor would Plaintiff be authorized to file an FAC in propria persona. Moreover, the standing defect requires striking the complaint under Estate of Sanchez. The issue is not whether the substantive defects can be cured by amendment; the issue is that Plaintiff fundamentally has no right to bring this action. Plaintiff cannot plead around the rule prohibiting unlicensed practice of law.

However, because this is a procedural defect, the action will be dismissed without prejudice.

CONCLUSION

Defendants' demurrer is SUSTAINED without leave to amend. The complaint is dismissed without prejudice.